on,

and hybrid propulsion systems.

.20 Passenger ship means a ship which carries more than 12 passengers.

.21 Polar Code means the International Code for Ships Operating in Polar Waters, consisting of an introduction, parts I -A and II -A and parts I -B and II-B, as adopted by resolutions MSC.385(94) and MEPC.264(68), as may be amended, provided that:

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II-B, as adopted by resolutions MSC.385(94) and MEPC.264(68), as may be amended, provided that:

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introduction and chapter 1 of part II-A of the Polar Code are adopted, brought into force and take effect in accordance with the provisions of article 16 of the present Convention concerning the amend ment procedures applicable to an appendix to an annex; and

.2

Marine Environment Protection Committee in accordance with its Rules of Procedure.

.22 Refrigerated cargo carrier means a ship designed exclusively for the carriage of refrigerated cargoes in holds.

.23 Required annual operational CII is the target value of attained annual operational CII in accordance with regulations 26 and 28 of this Annex for the specific ship type and size.

.24 Required EEDI is the maximum value of attained EEDI that is allowed by

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operational CII in accordance with regulations 26 and 28 of this Annex for the specific ship type and size.

.24 Required EEDI is the maximum value of attained EEDI that is allowed by regulation 24 of this Annex for the specific ship type and size.

.25 Required EEXI is the maximum value of attained EEXI that is allowed by regulation 25 of this Annex for the specific ship type and size.

.26 Ro-ro cargo ship means a ship designed for the carriage of roll -on-roll-off cargo transportation units.

.27 Ro-ro cargo ship (vehicle carrier) means a multi-deck roll-on-roll-off cargo ship designed for the carriage of empty cars and trucks.

.28 Ro-ro passenger ship means a passenger ship with roll -on-roll-off cargo spaces.

RESOLUTION MEPC.328(76)

INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 9 -

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INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 9 -

.29 Tanker means an oil tanker as defined in regulation 1 of Annex I of the present Convention or a chemical tanker or an NLS tanker as defined in regulation 1 of Annex II to the present Convention.

Regulation 3

Exceptions and exemptions

General

1 Regulations of this Annex shall not apply to:

.1 any emission necessary for the purpose of securing the safety of a ship or saving life at sea; or

.2 any emission resulting from damage to a ship or its equipment:

.2.1 provided that all reasonable precautions have been taken after the occurrence of the damage or discovery of the emission for the purpose of preventing or minimizing the emission; and

.2.2 except if the owner or the master acted either with intent to cause

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occurrence of the damage or discovery of the emission for the purpose of preventing or minimizing the emission; and

.2.2 except if the owner or the master acted either with intent to cause

damage, or recklessly and with knowledge that damage would probably result.

Trials for ship emission reduction and control technology research

2 The Administration of a Party may, in cooperation with other Administrations as appropriate, issue an exemption from specific provisions of this Annex for a ship to conduct trials for the development of ship emission reduction and control technologies and engine design programmes. Such an exemption shall only be provided if the applications of specific provisions of the Annex or the revised NO x Technical Code 2008 could impede research into the development of such technologies or programmes. A permit issued under this regulation shall not exempt a ship from the reporting requirement under regulation 27 and shall not alter the type and

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development of such technologies or programmes. A permit issued under this regulation shall not exempt a ship from the reporting requirement under regulation 27 and shall not alter the type and

scope of data required to be reported under regulation 27. A permit for